

1.

CASE #	CASE NAME	HEARING NAME
CVRI2403720	CITY OF RIVERSIDE vs LEMASTERS TAHIR	MOTION TO COMPEL DEFENDANT JEFFREY LEMASTERS TAHIR'S RESPONSES TO REQUEST FOR SPECIAL INTERROGATORIES, SET ONE AND REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$1,500.00
CVRI2403720	CITY OF RIVERSIDE vs LEMASTERS TAHIR	MOTION TO COMPEL ANSWER/RESPONSES TO FORM INTERROGATORIES
CVRI2403720	CITY OF RIVERSIDE vs LEMASTERS TAHIR	MOTION TO COMPEL ANSWER/RESPONSES TO PRODUCTION OF DOCUMENTS

Tentative Ruling: Hearing continued to 7/29/26.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2504116	GDC-RCH COUNTRYSIDE, LP vs VIRAMONTES	MOTION TO VACATE VOID ENTRY'S ENTRY OF DEFAULT FOR LACK OF PERSONAL SERVICE AND LACK OF PERSONAL JURISDICTION

Tentative Ruling: Defendant Alexia Guadalupe Viramontes ("Defendant") moves to set aside the entry of default dated December 10, 2025, and the default judgment entered on April 24, 2026. Defendant argues the judgment is void under Code of Civil Procedure ("CCP") section 473(d) for lack of service, or alternatively should be set aside under CCP sections 473.5 or 473(b). Plaintiff GDC-RCH Countryside, LP ("Plaintiff") opposes the motion, asserting that Defendant was personally served and had actual notice of the litigation for months before seeking relief. For the reasons set forth below, the Court DENIES Defendant's motion in its entirety.

EVIDENTIARY OBJECTIONS

Defendant submitted six objections to the evidence provided in Plaintiff's opposition, specifically targeting the declarations of Kimmeoashay Daniels and Kevin Hannifan.

The Court overrules all of Defendant's evidentiary objections. Under Evidence Code section 647, the return of a registered process server establishes a presumption of the truth of the facts stated therein. Ms. Daniels, a registered process server, provided a declaration based on personal knowledge detailing her observations and the specific acts of service. Any discrepancies in timestamps or photo overlays noted by Defendant go to the weight of the evidence, not its admissibility. Furthermore, Plaintiff's counsel, Mr. Hannifan, properly authenticated records of service attempts and mailings based on his personal knowledge of the case's management.